

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sophia Manuel	Team: Team # 4	CCRB Case #: 201310465	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 11/06/2013 10:20 PM	Location of Incident: East 188th Street and Creston Avenue	18 Mo. SOL 5/6/2015	Precinct: 46		
Date/Time CV Reported Wed, 11/06/2013 10:59 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 11/06/2013 10:59 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM James Conn	11219	952610	PBBX
2. POM Edwin Peguero	24835	953225	009 PCT
3. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Margaret Bauert	08181	952451	032 PCT
2. POF Alexandra Michaels	13169	953107	044 PCT
3. SGT Davon Alston	00136	938326	PBBX

Officer(s)	Allegation	Investigator Recommendation
A . POM James Conn	Abuse: PO James Conn did not provide his name and shield number to § 87(2)(b)	A . Substantiated
B . POM Edwin Peguero	Abuse: PO Edwin Peguero threatened to arrest § 87(2)(b)	B . Unsubstantiated
C . POM James Conn	Abuse: PO James Conn frisked § 87(2)(b)	C . Substantiated
D . POM James Conn	Abuse: PO James Conn searched § 87(2)(b)	D . Unsubstantiated
E . POM James Conn	Abuse: PO James Conn threatened to arrest § 87(2)(b)	E . Unsubstantiated
F . An officer	Abuse: An officer frisked § 87(2)(b)	F . Officer(s) Unidentified
G . An officer	Abuse: An officer searched § 87(2)(b)	G . Officer(s) Unidentified
H . POM James Conn	Abuse: PO James Conn searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	H . Substantiated
I . An officer	Abuse: An officer searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	I . Officer(s) Unidentified
J . POM James Conn	Abuse: PO James Conn issued a disorderly conduct summons to § 87(2)(b)	J . Substantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On November 6, 2013, at approximately 10:20 p.m., officers from Patrol Borough Bronx Impact Response Team stopped § 87(2)(b) and § 87(2)(b) in their car at East 188th Street and Creston Avenue in the Bronx for tinted windows. PO James Conn refused to provide his name and shield number to § 87(2)(b) (**Allegation A**). PO Edwin Peguero allegedly threatened to arrest § 87(2)(b) (**Allegation B**). PO Conn frisked and allegedly searched, and threatened to arrest § 87(2)(b) (**Allegations C-E**). An unidentified officer allegedly frisked and searched § 87(2)(b) (**Allegations F and G**). PO Conn and the unidentified officer searched the car (**Allegations H and I**). PO Conn issued three summonses to § 87(2)(b) including a disorderly conduct summons (**Allegation J**). PO Peguero did not have any memo book entries regarding the incident (**Allegation K**) (CCRB complaint encl. 8-9; summonses encl. 19-23; 45-47).

Video footage of the incident is attached to IA #26. It was captured on § 87(2)(b)'s cell phone, which she left recording inside the car throughout the incident. With the exception of a momentary glimpse of a white male officer's face, the video does not show officers' faces clearly, but their voices can be heard (encl. 10-13).

Mediation, Civil and Criminal Histories

§ 87(2)(b) and § 87(2)(b) rejected mediation. Inquiry into the status of civil proceedings is pending. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- PO James Conn has been a member of the NYPD for two years. There are no prior substantiated CCRB complaints against PO Conn (encl. 2).
- PO Edwin Peguero has been a member of the NYPD for two years. There are no prior substantiated CCRB complaints against PO Peguero (encl. 3).
- This is the first CCRB complaint filed by § 87(2)(b) or § 87(2)(b) (encl. 4-5).

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(b) alleged that the white male officer who was in a marked van and who issued him the summonses also refused § 87(2)(b) and searched his car. Although PO Conn did not recall the incident, his memo book and the summonses indicate that he issued them. He is a white male and was assigned to a marked van. § 87(2)(g)
- § 87(2)(b) alleged that the black male who was partnered with PO Conn threatened to arrest him. PO Conn said that he was with Sgt. Donald Gannon. However, Sgt. Gannon, a white male, testified at the CCRB and wrote in his memo book that he was at the stationhouse at the time of the incident (encl. 62-65). PO Peguero, a dark-skinned Hispanic male, wrote in his memo book that PO Conn picked him up at 8:30 p.m. on November 6, 2013 (MOS photo encl. 82; memo book encl. 79-80). § 87(2)(b) selected PO Peguero's photo in the photo array (encl. 27-29). § 87(2)(g)

- § 87(2)(b) and § 87(2)(b) alleged that a white or Hispanic female officer working with PO Conn frisked and searched § 87(2)(b) and then searched their car. This officer was described as 5'3" tall with a heavy build and brown hair, over 30 years old. No female officer documented the incident or PO Conn's van in her memo book. A photo array of all six white and Hispanic female officers assigned to foot posts in Patrol Borough Bronx IRT was shown to § 87(2)(b) (NYPD documents summary encl. 93-94; 100-101). He selected the photo of PO Bauert and said he thought she was the officer who took § 87(2)(b) out of the car (photo array encl. 30-35). § 87(2)(b) did not cooperate in viewing a photo array. PO Bauert did not have any memo book entry or recollection of the incident, but her voice sounded similar to the female officer's voice in § 87(2)(b)'s video (IAs # 26, 87 and 122). As a § 87(2)(b) white female with brown hair, she somewhat fits the description provided by § 87(2)(b) and § 87(2)(b). Her foot post assignment was East 188th Street from Grand Concourse to Creston Avenue, which includes the incident location. However, the investigation identified a second officer, PO Alexandra Michaels, who looks similar to PO Bauert and whose build more closely fits that described by § 87(2)(b) and § 87(2)(b) (encl. 54a). PO Michaels was Sgt. Davon Alston's operator at the time of the incident. Sgt. Alston testified that he and PO Michaels drove by PO Conn's car stop to check on them. He denied that he or PO Michaels exited their car (encl. 56-61). PO Michaels had no recollection or memo book entry regarding the car stop (encl. 51-55). Her voice in her CCRB interviews also sounds similar to the female officer's voice in § 87(2)(b)'s video (IAs #53, 54, and 140). The video does not capture the face of the female officer. § 87(2)(g)

Allegation Not Pleaded

- § 87(2)(g)

Findings and Recommendations

Allegation A– Abuse of Authority: PO James Conn did not provide his name and shield number to § 87(2)(b)

§ 87(2)(b) testified that at the end of the incident when PO Conn handed him the summonses, § 87(2)(b) asked for PO Conn's name and shield number. PO Conn replied, "It's on the ticket" (encl. 15-18).

§ 87(2)(b)'s video captured his request for PO Conn's name and shield number, which took place at the beginning of the incident, before § 87(2)(b) exited the car. At 00:01:02, § 87(2)(b) says, "What is your name and badge number?" PO Conn replies, "It's going to be on the four tickets you're going to get in one second." § 87(2)(b) and PO Conn argue about the number of tickets § 87(2)(b) would receive. PO Conn does not provide his name or shield number, and § 87(2)(b) does not ask for the information again (encl. 10-13).

PO Conn and PO Peguero had no recollection of the incident (encl. 49-50; 83-84). § 87(2)(b) did not allege that any officer refused to provide his name and shield number (encl. 36-38).

Patrol Guide Procedure 203-09 requires that officers clearly state their name and shield number, or otherwise provide them, to anyone upon request (encl. 1e).

§ 87(2)(g)

it is recommended that **Allegation A be substantiated.**

Allegation B – Abuse of Authority: PO Edwin Peguero threatened to arrest § 87(2)(b)

§ 87(2)(b) testified that when he refused PO Conn’s order to exit the car, PO Peguero said, “If you don’t get out of the car, I’m going to lock you up” (encl. 15-18).

At 00:01:15, PO Conn tells § 87(2)(b) several times to roll up his window. PO Peguero then says, “You need to roll up the window, or we’re going to pull you out of the car.” § 87(2)(b) argues that he did not commit a crime. PO Conn tells him to exit the car. § 87(2)(b) complies. At 00:02:33, PO Peguero says, “Let me tell you something. If you don’t calm down—,” and then § 87(2)(b) says something loudly, so that the remainder of PO Peguero’s statement is inaudible. PO Peguero then says, “And I’m telling you, if you don’t calm down--,” and he is again cut off by § 87(2)(b). At no point in the video is PO Peguero heard threatening to arrest § 87(2)(b). At 08:26, § 87(2)(b) is heard telling § 87(2)(b) that the officers threatened to arrest him (encl. 10-13).

PO Peguero and PO Conn did not recall the incident (encl. 49-50; 83-84). § 87(2)(b) did not allege that PO Peguero threatened to arrest § 87(2)(b) (encl. 36-38).

§ 87(2)(g)

It is, therefore, recommended that **Allegation B be unsubstantiated.**

Allegation C – Abuse of Authority: PO James Conn frisked § 87(2)(b)

Allegation D – Abuse of Authority: PO James Conn searched § 87(2)(b)

§ 87(2)(b) testified that after PO Peguero threatened to arrest him if he did not exit the car, § 87(2)(b) got out and put his keys in his pocket. PO Conn said, “Take your hands out of your pockets.” § 87(2)(b) replied, “My hands aren’t in my pocket. I’m just dropping my keys into my pocket.” PO Conn then pulled § 87(2)(b)’s wrist to the back of his body, and forced him against the car. PO Conn asked if § 87(2)(b) had any weapons. § 87(2)(b) said he did not and said, “I do not consent to any search.” PO Conn patted § 87(2)(b)’s back pants pockets and then placed his hands inside § 87(2)(b)’s front pants pockets. § 87(2)(b) said, “Now you’re doing an illegal search. I did not give you permission to search me. Why are you putting your hands in my pockets?” PO Conn continued searching § 87(2)(b)’s pockets and said, “I’m searching for weapons.” In his left pocket were his bank card, driver’s license, and car keys. His right pocket contained several loose bills. Nothing was clipped to his waistband (encl. 15-18).

§ 87(2)(b) said PO Conn placed § 87(2)(b) against the car and frisked him, patting down his arms, sides, and legs. PO Conn asked, “Do you have any weapons?” § 87(2)(b) said that he did not. PO Conn said, “I wouldn’t believe you if you told me.” He continued frisking § 87(2)(b).

§ 87(2)(b) who said, “But I have not committed a crime.” § 87(2)(b) did not see PO Conn search § 87(2)(b) (encl. 36-38).

At 00:01:34 in the video, PO Conn tells § 87(2)(b) once to exit the car. § 87(2)(b) says, “Okay.” There is the sound of keys jingling, a door opening, keys jingling again, and the car beeping. PO Conn or PO Peguero says, “You have any weapons on you?” The door slams. Then there is the sound of bumping against the car, and PO Peguero says, “You’re making it worse for yourself.” Officers make indistinct statements until 00:02:01, when § 87(2)(b) says, “I don’t have nothing on me.” Officers make indistinct statements. § 87(2)(b) says, “I did not commit no crime, and you are searching me illegally.” PO Conn says, “Lower your voice.” § 87(2)(b) says, “You are breaking my civil rights and my constitutional rights. I did nothing wrong. You’re searching me, you’re illegally searching me, and I did nothing wrong.” PO Conn says, “We’re frisking you for weapons.” § 87(2)(b) says, “I don’t have no weapons on me.” PO Conn says, “You could have just said that, but I wouldn’t have believed you.” At 00:06:11, an officer is heard stating that § 87(2)(b) was acting irrationally. At 00:11:31, § 87(2)(b) is heard telling § 87(2)(b) that the officers asked him why he was so nervous (encl. 10-13).

PO Conn did not recall the incident even after viewing the video and was unable to articulate or recall any reason why he may have suspected § 87(2)(b) of being armed (encl. 49-50).

An officer may order a driver and passenger out of a vehicle during a stop for a traffic violation. People v. Robinson, 74 N.Y.2d 773 (1989) (encl. D-F). Once the subject of a legal vehicle stop is removed from the car, an officer may conduct a frisk only if he has reasonable suspicion that a suspect is armed and may be dangerous. People v. Russ, 61 N.Y.2d 693 (1984) (encl. G-H). Furtive movements or similarly innocuous behavior alone will not generate reasonable suspicion. Rather, those movements must be combined with some other objective factor suggesting that the subject is armed and dangerous. People v. Miller, 121 A.D.2d 335 (App. Div. 1st Dept. 2004) (encl. I-L). Courts have found that, while a motorist's refusal to comply with an officer's directives may be suspicious, it is not sufficient to justify a frisk unless the context surrounding that refusal can be shown to suggest a threat to the officer's safety. People v. Driscoll, 101 A.D.3d 1466 (App. Div. 3rd Dept. 2012) (encl. M-N).

§ 87(2)(g) [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] it is recommended that **Allegation C** be substantiated.

§ 87(2)(g)

It is therefore recommended that **Allegation D be unsubstantiated.**

Allegation E – Abuse of Authority: PO James Conn threatened to arrest § 87(2)(b)

§ 87(2)(b) said that while PO Conn frisked and searched him, § 87(2)(b) protested and questioned the search. PO Conn replied, “I’m searching for weapons. You have no right to ask questions. Don’t ask any more questions or I’ll arrest you for disorderly conduct” (encl. 15-18). § 87(2)(b) did not allege that any officer threatened to arrest § 87(2)(b) (encl. 36-38).

At 00:02:00, the video captures § 87(2)(b) repeatedly protesting being searched. PO Conn tells him twice to lower his voice. He cannot be heard threatening to arrest § 87(2)(b) but there are several instances of indistinct voices. At 00:08:26, § 87(2)(b) is heard telling § 87(2)(b) that the officers threatened to arrest him (encl.10-13).

§ 87(2)(g)

It is, therefore, recommended that **Allegation E be unsubstantiated.**

Allegation F – Abuse of Authority: An officer frisked § 87(2)(b)

Allegation G – Abuse of Authority: An officer searched § 87(2)(b)

§ 87(2)(b) testified that the unidentified female officer said, “We’re going to have to check you because of his behavior,” referring to § 87(2)(b). § 87(2)(b) asked what behavior. The female officer said that § 87(2)(b) was being belligerent and disorderly. § 87(2)(b) complained, but gave the female officer permission to search her. The female officer frisked and searched § 87(2)(b) (encl. 36-38). The video does not capture the conversation between § 87(2)(b) and the female officer. The video also does not capture the female officer’s face (encl. 10-13).

§ 87(2)(g)

it is recommended that **Allegations F and G be closed as officer unidentified.**

Allegation H – Abuse of Authority: PO James Conn searched the car in which § 87(2)(b) **and** § 87(2)(b) **were occupants.**

Allegation I – Abuse of Authority: An officer searched the car in which § 87(2)(b) **and** § 87(2)(b) **were occupants.**

The video confirms that PO Conn and a female officer searched § 87(2)(b) car, although the female officer’s face is never visible.

After several minutes of indistinct voices and rustling, a flashlight shines from the left side of the car at 00:05:47. PO Conn’s face enters the car. There are rustling sounds. The female officer, whose voice sounds close to the camera, recounts her conversation with § 87(2)(b) regarding tints. In the windshield is a reflection of hands moving near the center console. PO Conn says, “And the way he’s acting.” The female officer says, “Yeah, he’s acting really irrational.” In the windshield reflection, some paper is removed from the console and replaced. The female officer says, “Yeah, you just don’t act that way at a car stop.” The paper lands on the camera. PO Conn holds a card and says, “What’s this? What the hell is this? Why does he have two?” PO Conn puts the paper back in the console and reaches into a cup holder. He says, “Nothing in the glove box,

right?” The female officer replies, “No, I checked there.” PO Conn removes and replaces items from the center console. The female officer says, “Nothing there, nothing in here.” PO Conn says, “Alright, he’s good.” The doors close (encl. 10-13).

Once a suspect has been removed from a vehicle, and nothing has occurred to elevate suspicion, an officer must demonstrate a “substantial likelihood of a weapon in the car” in order to justify further intrusive action toward the car. Absent probable cause, it is unlawful for a police officer to invade the interior of a stopped vehicle once the suspects have been removed and patted down without incident, as any immediate threat to the officers’ safety has been eliminated. People v. Baksh, 2014 N.Y. App. Lexis 112 (encl. O-Q).

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] It is, therefore, recommended that **Allegation H be substantiated.** § 87(2)(g) [REDACTED] it is recommended that **Allegation I be closed as officer unidentified.**

Allegation J – Abuse of Authority: PO James Conn issued a disorderly conduct summons to

§ 87(2)(b) [REDACTED]
PO Conn gave § 87(2)(b) [REDACTED] a summons for disorderly conduct, subsection one. PO Conn wrote on the summons that § 87(2)(b) [REDACTED] acted “disorderly and threatening while he was stopped,” and that § 87(2)(b) [REDACTED] would not lower his window and yelled at officers, “causing unnecessary attention” (encl. 22-23; 45-46). PO Conn did not recall the incident even after viewing the video/audio footage but stated that § 87(2)(b) [REDACTED] aggressive tone alone constituted threatening behavior (encl. 49-50).

§ 87(2)(g) [REDACTED] § 87(2)(b) [REDACTED] testified that as officers approached his car, he rolled his window down partway, but then complied with PO Conn’s request that he roll it down all the way. When PO Conn informed him that he was pulled over for tinted windows, § 87(2)(b) [REDACTED] complained that tints were not the real reason he was stopped. He argued with the officers. They told him to exit the car, and he refused. Only when PO Peguero threatened to arrest him did he exit the car. Once out of the car, § 87(2)(b) [REDACTED] verbally protested as PO Conn frisked and searched him. § 87(2)(b) [REDACTED] denied moving his body or hands around, raising his voice or using profanity. He acknowledged speaking loudly enough that passersby stopped and watched the incident, but a crowd did not form (encl. 15-18).

§ 87(2)(b) [REDACTED] testified that § 87(2)(b) [REDACTED] began complaining after PO Conn told him that he was stopped for his tinted windows. § 87(2)(b) [REDACTED] did not state that PO Conn asked § 87(2)(b) [REDACTED] to roll the window down or up. She said that § 87(2)(b) [REDACTED] complied with PO Conn’s instruction that he exit the car. Approximately six people gathered, a few feet from the car, and watched the incident. § 87(2)(b) [REDACTED] did not state that § 87(2)(b) [REDACTED] yelled at, threatened, or fought the officers. She said the female officer told her that § 87(2)(b) [REDACTED] was “belligerent” and “disorderly” (encl. 35-38).

§ 87(2)(b) never refused to roll down his window in the video. The only orders which the officers repeated are that he roll the window back up and that he lower his voice. At 00:00:20 in the video, PO Conn says, “Do me a favor, roll down your window a little further.” Immediately, the sound of the window rolling down can be heard. At 00:01:15, PO Conn tells § 87(2)(b) twice to roll his window back up. § 87(2)(b) refuses and only complies when PO Peguero threatens to remove him from the car. At 00:02:00, after § 87(2)(b) has exited the car, he complains that he is being searched illegally. PO Conn tells him twice to lower his voice, as § 87(2)(b) continues to protest. An officer tells him several times to calm down. Although § 87(2)(b) protests in a loud voice, he is never heard yelling, threatening, or using profanity. Although there are periods of indistinct voices, these voices are soft or moderate (encl. 10-13).

A person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof, he engages in fighting or in violent, tumultuous or threatening behavior. *N.Y. Penal Law §240.20(1)* (encl. R-S). Courts have found that the mere expression, even if uttered in a loud voice, that one feels aggrieved by officers does not constitute disorderly conduct, *People v. Square*, 872 N.Y.S.2d 693 (Crim. Ct. N.Y. Cty. 2008) (encl. T-W). A disorderly conduct charge requires evidence of actual or threatened public harm. An isolated verbal exchange between a single individual and police officers, without any other aggressive action or extenuating circumstances, is not likely to constitute disorderly conduct. Likewise, the mere presence of spectators, without any indication that these spectators are likely to become involved in the dispute, is not sufficient to support a charge of disorderly conduct. *People v. Baker*, 2013 N.Y. Lexis 115 (2013) (encl. X-1a).

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] It is recommended that **Allegation J** be substantiated.

§ 87(4-b), § 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date